



Republic of the Philippines
Province of Camarines Norte
MUNICIPALITY OF DAET



OFFICE OF THE SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 7TH REGULAR SESSION OF THE HONORABLE SANGGUNIANG BAYAN OF DAET HELD AT THE SESSION HALL (LEGISLATIVE HALL) IN BARANGAY PAMORANGON, DAET, CAMARINES NORTE ON THE 15TH DAY OF FEBRUARY, 2021 AT 9:00 A.M.

PRESENT:

HON. ROSA MIA L. KING
Municipal Vice-Mayor / Presiding Officer

MUNICIPAL COUNCILORS

HON. MA. ELIZA H. LLOVIT
HON. TOMASITO SANTIAGO C. TURINGAN
HON. APOLONIO B. PANONG
HON. FELIX C. ABAÑO

HON. MARLON T. BANDELARIA
HON. ROSSANO C. VALENCIA
HON. PEDRO S. MUSA – LNB

ABSENT:

COUN. WILLIAM CARLO R. AVILA
COUN. NESTOR F. DALIDA
COUN. JUDY ROSE T. GALLARDO

- On Official Leave of Absence (FL)
- On Official Business
- On Official Leave of Absence (FL)

Resolution No. 062-2021

RESOLUTION ADOPTING AN ORDINANCE REQUIRING MALLS, GROCERIES AND OTHER BUSINESS ESTABLISHMENTS LOCATED WITHIN THE MUNICIPALITY OF DAET, CAMARINES NORTE TO GIVE PRIORITY TO DIFFERENTLY-ABLED PERSONS, PREGNANT WOMEN AND SENIOR CITIZENS BY DESIGNATING A SPECIAL LANE FOR THEM AT THE CASHIER COUNTER, AND PROVIDING PENALTIES FOR VIOLATIONS THEREOF.

WHEREAS, Section 11, Article XIII of the Constitution provides that the State shall adopt an integrated and comprehensive approach to health development which shall endeavor to make essential goods, health and other social service available to all the people at affordable cost. There shall be priority for the needs of the underprivileged, sick, elderly, disabled, women and children. Section 4, Article XV of the Constitution further declares that it is the duty of the family to take care of its elderly members while the State may design just programs of social security for them;

WHEREAS, Section 458 of Republic Act No. 7160, otherwise known as the Local Government Code of 1991, empowers the Sangguniang Bayan concerned to enact ordinances, approve resolutions and appropriate funds for the general welfare of the municipality and its inhabitants pursuant to Section 16 of the same code;

WHEREAS, pursuant to the above-mentioned policy, the Congress of the Philippines enacted Republic Act No. 7432, as amended by Republic Act No. 9257, and further amended by Republic Act No. 9994, otherwise known as the "Expanded Senior Citizens Act of 2010";

WHEREAS, in keeping with the needs and concerns of the elderly constituents, the Municipal Government of Daet, Camarines Norte, at the instance of the Sangguniang Bayan, sees the necessity of extending such privileges also to differently-abled persons and pregnant women;

NOW THEREFORE, after due deliberation, on motion of Councilor Tomasito Santiago C. Turingan, with Councilors William Carlo R. Avila and Apolonio B. Panong, as co-movants, seconded by Councilors Judy Rose T. Gallardo, Nestor F. Dalida, Pedro S. Musa, Felix C. Abaño and Rossano C. Valencia;

BE IT RESOLVED, as it is hereby resolved to adopt:

MUNICIPAL ORDINANCE NO. 400-2021

AN ORDINANCE REQUIRING MALLS, GROCERIES AND OTHER BUSINESS ESTABLISHMENTS LOCATED WITHIN THE MUNICIPALITY OF DAET, CAMARINES NORTE TO GIVE PRIORITY TO DIFFERENTLY-ABLED PERSONS, PREGNANT WOMEN AND SENIOR CITIZENS BY DESIGNATING A SPECIAL LANE FOR THEM AT THE CASHIER COUNTER, AND PROVIDING PENALTIES FOR VIOLATIONS THEREOF

BE IT ORDAINED by the Honorable Sangguniang Bayan of Daet, Camarines Norte, in session assembled that:

SECTION 1. TITLE. This Ordinance shall be known as "An Ordinance Requiring Malls, Groceries and other Business Establishments located within the Municipality of Daet, Camarines Norte to give Priority to Differently-Abled Person, Pregnant Women and Senior Citizens by Designating a special lane for them at the cashier counters, and Providing Penalties for violations thereof".

SECTION 2. BASIS. It is the policy of the municipal government of Daet, Camarines Norte to firmly commit and to give priority to the protection of the basic rights of the differently-abled, pregnant women and senior citizens, as enshrined in the 1987 Philippines Constitution.

SECTION 3. COVERAGE. All existing malls, groceries and other business establishments within the territorial jurisdiction of Daet, Camarines Norte shall be covered by the provisions of this Ordinance.

SECTION 4. DEFINITION OF TERMS. The following words and phrase, whenever used in this Ordinance, shall be construed as defined in this section, to wit:

- a) **Business Establishments** - refers to all business establishments including but not limited to depots, shopping malls/center, grocery stores, housewares, supermarkets, retailer-outlets, manufacturers, producers, hardwares, and other



similarly related commercial establishment who directly sells, conduct trades and cater services to its clients and customers;

- b) **Shopping Mall / Center** - refers to a big building with many stores or shops inside.

SECTION 5. MANDATORY REQUIRMENT. All malls, groceries and other business establishments within the coverage of this ordinance is hereby directed to designate a special lane for Differently-abled individuals, Pregnant Women and Senior Citizens to give priority to them and provide signage for such.

SECTION 6. PENALTIES. The following penalties shall be imposed upon the operator, manager and/or owners of the mall, grocery or any other business establishments and/or individual who shall fail to give priority and designate a special lane for the above-mentioned individuals:

- First Offense - Two Thousand Five Hundred Pesos (Php 2,500.00) fine
- Second Offense - Two Thousand Five Hundred Pesos (Php 2,500.00) fine and/or the Revocation of its license to operate for a period of one (1) year.

SECTION 7. IMPLEMENTATION/MONITORING. The Local Government Unit of Daet shall create an Inspection Team which shall include but not limited to the following:

- a) Representative from the Business Permits and Licensing Unit;
- b) Representative of the OSCA;
- c) Representative of the PDAO; and
- d) Safety Officer.

The Inspection Team is hereby tasked to monitor, inspect and secure the strict implementation of the provision of this Ordinance.

SECTION 8. REPEALING CLAUSE. All ordinances, resolution, local executive orders, rules and regulations, or any part thereof inconsistent herewith are deemed repealed, modified or amended accordingly.

SECTION 9. SEPARABILITY CLAUSE. In case any provision of this ordinance is declared unconstitutional or invalid, the other provision hereof which are not affected thereby shall remain in full force and effect.

SECTION 10. EFFECTIVITY CLAUSE. This ordinance shall take effect immediately upon its approval.

ENACTED.

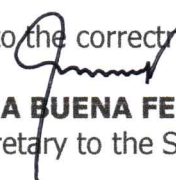
RESOLVED FURTHER, to furnished copies hereof, Honorable Benito S. Ochoa, Municipal Mayor; Mrs. Francia Y. Pabia, MSWDO; Ms. Jobelle Mago, PDAO; all business



establishments in the municipality of Daet, and all others concerned for their information and appropriate action;

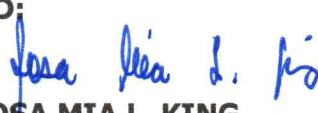
CARRIED UNANIMOUSLY.

I HEREBY CERTIFY to the correctness of the foregoing:

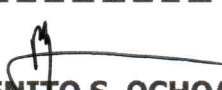

MARIA BUENA FE ZABALA-LUARES
Secretary to the Sangguniang Bayan


COUN. TOMASITO SANTIAGO C. TURINGAN
Author

ATTESTED:


ROSA MIA L. KING
Municipal Vice-Mayor/ Presiding Officer

APPROVED


BENITO S. OCHOA
Municipal Mayor

Date: Feb. 18, 2021